

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ELIZABETH ABAUNZA,

Petitioner

VS.

HERMES ABAUNZA,

Respondent

) Case Number: FDI-25-801584

) Hearing Date: June 30, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REVIEW OF CHILD SUPPORT & PRIVATE SCHOOL PAYMENT (SEE STIP FILED 11/24/25)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Elizabeth Abaunza (Mother) and Respondent Hermes Abaunza (Father).
- 2) They share two minor children: Arianna and Leia.
- 3) On 11/21/25, the parties entered into a Stipulation and Order, which provides for a \$0 child support order (and waiver of guideline support owed to Mother), a reduction in Father's share of private school tuition to 30%, and a review hearing regarding child support and private school payment on 3/5/26.
- 4) On 3/2/26, the parties filed a Stipulation and Order to Continue Hearing; the review hearing was continued to 5/19/26.
- 5) On 3/2/26, Mother filed an Income and Expense Declaration.
- 6) At the prior 5/19/26 hearing, the parties jointly appeared and requested a continuance. The matter was continued to 6/30/26.

- 1 7) On 6/18/26, Mother filed a Supplemental Declaration requesting the Court maintain the \$0 child
2 support order, increase Father's share of private school tuition to 50%, order Father to reimburse
3 Mother \$765 (half of \$1,530) in school registration costs, and order a vocational evaluation for
4 Father.
- 5 8) On 6/18/26, Mother filed an updated Income and Expense Declaration.
- 6 9) On 6/23/26, Father filed a Supplemental Declaration seeking a child support order for \$649
7 payable by Mother to Father and a further reduction in Father's share of private school tuition to
8 \$0. Father attached a proposed XSpouse report. Father requests the Court deny Mother's request
9 he undergo a vocational evaluation as he is on disability for a work-related injury and the request
10 is not properly before the Court. Father states he was medically advised that he can return to work
11 as a BART Community Services Officer in a few months. Father states he believes the minor
12 children should be enrolled in public school.
- 13 10) On 6/26/26, Father filed "Document to Correct Typographical Error on Respondent's
14 Supplemental Declaration."

15 **B. Findings and Order**

- 16 1) The Court declines to modify the terms of the parties' Stipulation and Order regarding child
17 support and private school tuition at this time as the Court finds it would be premature to do so
18 for the following reasons: (a) it is undisputed that Father's medical and employment situation
19 remains uncertain; however, Father believes that he can return to work "in a few months;" (b) the
20 parties appear to disagree about whether the children should remain enrolled in their current
21 private school; and (c) Father seeks to increase his parenting timeshare in the fall.
- 22 2) Should either party wish to modify the child support order when these uncertainties are resolved,
23 they may file a new Request for Order.
- 24 3) Similarly, Mother's request for a vocational evaluation for Father is DENIED without prejudice.
- 25 4) Mother's request for Father to reimburse Mother \$765 (half of \$1,530) in school registration costs
26 is GRANTED, albeit in the amount of \$459 (i.e., 30% of \$1,530) pursuant to the parties'
27 agreement. Father shall pay Mother this balance in full by 7/31/26.
- 28 5) Counsel for Mother shall prepare the Findings and Order After Hearing.
- 29

1 6) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
2 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
3 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
4 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
5 proposed order after hearing directly to the court. Failure to submit the order after hearing within
6 10 days may allow the other party to prepare a proposed order and submit it to the court in
7 accordance with CA Rules of Court, Rule 5.125(d).